

PM&JI Reservify

Terms & Conditions

1. Acceptance of Terms

By registering for and/or using the PM&JI Reservify photo booking services (the “Service”), you (“Client” or “you”) acknowledge that you have read, understood, and agree to be bound by these Terms & Conditions (“Terms”). If you do not agree with any part of these Terms, do not complete the registration process or use the Service.

2. Definitions

- **Service Provider:** PM&JI Reservify and its owner/photographer (the individual who will personally perform all photography services).
- **Client:** Any individual or entity that registers on or uses the Service.
- **Booking:** A confirmed reservation for photography services, as processed through PM&JI Reservify.

3. Eligibility & Account Registration

1. Age Requirement

- a. Clients must be at least eighteen (18) years old to register for or use the Service. By registering, you represent and warrant that you are at least eighteen years of age.

2. Account Information

- a. When you register, you agree to provide accurate, current, and complete information. You agree to update your account information promptly to keep it accurate. PM&JI Reservify reserves the right to suspend or terminate your account if any information provided is false, inaccurate, or incomplete.

3. Account Security

- a. You are solely responsible for maintaining the confidentiality of your account login credentials (username and password) and for all activities that occur under your account. You agree to notify PM&JI Reservify immediately of any unauthorized use or suspected breach of your account. PM&JI Reservify will not be liable for any loss or damage resulting from your failure to comply with this obligation.

4. Privacy & Data Protection

By registering, you consent to PM&JI Reservify's collection, use, disclosure, and storage of your personal data in accordance with our Privacy Policy. You acknowledge that you have read and understand the Privacy Policy, which governs how we process your information.

5. Scope of Services

1. Service Area

- a. PM&JI Reservify offers photography booking services exclusively within the National Capital Region (NCR), Philippines, including:
 - i. Manila
 - ii. Parañaque
 - iii. Makati
 - iv. Pasay
 - v. Caloocan
 - vi. Valenzuela
 - vii. Navotas
 - viii. Muntinlupa
 - ix. Malabon
 - x. Mandaluyong
 - xi. Marikina
 - xii. Taguig
 - xiii. Pasig
 - xiv. Quezon City
 - xv. Las Piñas
 - xvi. San Juan
- b. Bookings outside NCR are not accepted.

2. Photographer & Assignment

- a. All services are personally performed by the owner/photographer of PM&JI Reservify. There is no substitution; you will work directly with the owner.

3. Client Responsibilities During the Event

- a. Provide clear event details (date, time, venue, and any special requests) at least seven (2) days before the scheduled date.
- b. Ensure the photographer has reasonable access to the venue and subjects to be photographed.
- c. Conduct yourself and your guests in a professional and safe manner. PM&JI Reservify is not responsible for accidents, injuries, or losses arising from the Client's negligence or failure to follow venue rules.

6. Booking Process & Payment Terms

1. Reservation & Confirmation

- a. All reservations are subject to availability. A Booking is confirmed only when:
 - i. The Client submits the online Booking form.
 - ii. The Client pays the required non-refundable deposit (fifty percent (50%) of the package fee).
 - iii. The Client receives a confirmation email from PM&JI Reservify.

2. Payment Methods

- a. Accepted payment methods: GCash and PayMaya.
- b. Final payment (remaining balance) is due in full immediately following the completion of the event. Failure to pay the balance upon completion may cause the photographer to delay or withhold final deliverables until payment is received.

3. Additional Fees

- a. If the Client requests additional shooting hours beyond the agreed package, the rate is ₱1,800 PHP per hour. Any such additional fees must be paid in cash or via GCash/PayMaya immediately after the event.

4. Sales Tax & Other Charges

- a. All fees are quoted in Philippine Pesos (PHP) and may be subject to applicable taxes under Philippine law. If any government-imposed fees, surcharges, or taxes apply, the Client is responsible for payment of such fees in addition to published fees.

7. Cancellation Policy

1. Client-Initiated Cancellations

- a. All deposits and payments made by the Client are strictly non-refundable. By submitting payment, the Client acknowledges that there will be no refunds under any circumstances, including last-minute cancellations.

2. Service Provider-Initiated Cancellations

- a. If PM&JI Reservify (the owner/photographer) must cancel a Booking due to unforeseen circumstances (e.g., medical emergency, injury, equipment failure, or other force majeure), the Client will receive a full refund of all fees paid. In no event will PM&JI Reservify be liable for any additional costs, damages, or losses beyond returning the paid fees.

3. Force Majeure

- a. Neither party is liable for failure to perform due to causes beyond their reasonable control (e.g., natural disasters, government restrictions, acts of war, or public health emergencies). In the event of such a force majeure, PM&JI Reservify will refund any prepaid fees, less any actual expenses already incurred (e.g., non-refundable equipment rentals).

8. Delivery of Deliverables

1. Turnaround Time

- a. Final edited digital photographs will be delivered within three (3) business days after the event date. Delivery will be via a private online gallery, file-sharing link, or physical USB drive—whichever you select when booking.

2. Proofing & Revisions

- a. The Client may request basic color correction and cropping for up to five (5) images without additional charge. Any further or more extensive edits (e.g., advanced retouching, compositing) will incur additional fees, which will be quoted separately and must be approved and paid by the Client before work begins.

3. Archiving

- a. PM&JI Reservify will archive the final images for three (3) months from the date of delivery. After this period, the Service Provider is not responsible for storing or maintaining backup copies. It is the Client's responsibility to download and back up all files within three (3) months.

9. Intellectual Property & Usage Rights

1. Copyright Ownership

- a. All photographs, digital files, and related deliverables produced by PM&JI Reservify (the “Deliverables”) remain the intellectual property of PM&JI Reservify. The Client is granted a non-exclusive, non-transferable license to use, reproduce, and display the Deliverables for personal, non-commercial purposes only, unless a separate written agreement is made.

2. Usage Restrictions

- a. The Client may not sell, license, redistribute, or use the Deliverables for advertising, promotional, or commercial purposes without prior written consent from PM&JI Reservify. Any third-party use (e.g., print publications or paid social media marketing) must credit “PM&JI Reservify” when feasible.

3. Portfolio Use

- a. PM&JI Reservify reserves the right to use any Deliverables (or portions thereof) in portfolios, websites, social media, and marketing materials, unless the Client submits a written request at booking to withhold specific images.

10. Client Responsibilities & Conduct

1. Accuracy of Event Details

- a. The Client must provide complete, accurate information regarding event location, schedule, key participants, and any special requirements at least seven (7) days before the event.

2. Permissions & Releases

- a. The Client is responsible for securing any necessary permits, venue permissions, or model releases for individuals appearing in the photographs. PM&JI Reservify is not liable for any legal claims arising from unauthorized photography or breach of venue rules.

3. Cooperation & Conduct

- a. The Client and event attendees agree to cooperate with the owner/photographer’s reasonable direction. PM&JI Reservify reserves the right to suspend or terminate coverage if the environment becomes unsafe or if the Client or attendees engage in abusive, discriminatory, or illegal conduct.

11. Limitation of Liability & Indemnification

1. Limitation of Liability

- a. To the maximum extent permitted by law, PM&JI Reservify and its owner/photographer shall not be liable for any indirect, incidental, consequential, special, or punitive damages arising from or related to these Terms or the Service, including but not limited to loss of revenue, loss of data, loss of profits, or personal injury. PM&JI Reservify's total aggregate liability for any claim arising out of or relating to the Service or these Terms will not exceed the total fees paid by the Client for the specific Booking under which the claim arose.

2. Indemnification

- a. The Client agrees to indemnify, defend, and hold harmless PM&JI Reservify and its owner/photographer from and against all claims, liabilities, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising out of or relating to:
 - a. The Client's breach of these Terms;
 - b. The Client's negligence or willful misconduct;
 - c. Any claim by a third party relating to the Client's use of the Deliverables.

12. Warranties & Disclaimers

1. No Warranty

- a. The Service is provided on an "as is" and "as available" basis. PM&JI Reservify disclaims all warranties of any kind, whether express or implied, including but not limited to merchantability, fitness for a particular purpose, or non-infringement. PM&JI Reservify does not guarantee specific results, satisfaction, or uninterrupted Service.

2. Photographic Style & Quality

- a. While PM&JI Reservify strives for high-quality photography, the Client acknowledges that photographic style, color correction, lighting, and artistic interpretation are subjective. PM&JI Reservify does not guarantee an exact match to any sample images or client references.

13. Termination

1. By Client

- a. The Client may terminate the Service at any time by providing written notice to PM&JI Reservify. Termination will not relieve the Client of any outstanding payment obligations, including forfeiture of any deposits or fees already paid.

2. By Service Provider

- a. PM&JI Reservify may terminate or suspend access to the Service, in whole or in part, without prior notice, for conduct that violates these Terms or is harmful to the Service Provider's business interests. Upon termination, the Client must immediately cease using any Deliverables and pay any outstanding amounts owed.

14. Changes to Terms

PM&JI Reservify reserves the right to modify or update these Terms at any time. Any updated Terms will be posted on our website with the "Last Updated" date clearly indicated at the top. Continued use of the Service after the effective date of any changes constitutes acceptance of those changes.

15. Governing Law & Dispute Resolution

1. Governing Law

- a. These Terms shall be governed by and construed in accordance with the laws of the Republic of the Philippines, without regard to its conflicts of law principles.

2. Dispute Resolution

- a. Any dispute, claim, or controversy arising out of or relating to these Terms, the Service, or the Deliverables shall be resolved by the proper courts of Metro Manila. Each party consents to the exclusive jurisdiction and venue of such courts.

16. Severability & Waiver

1. Severability

- a. If any provision of these Terms is held invalid, illegal, or unenforceable by a court of competent jurisdiction, the remaining provisions shall remain in full force and effect.

2. Waiver

- a. No waiver of any term or condition in these Terms shall be deemed a further or continuing waiver of such term or condition or any other term or condition. A party's failure to assert any right or provision under these Terms shall not constitute a waiver of that right or provision.

17. Contact Information

If you have any questions or concerns about these Terms & Conditions, please contact us:

- **Email:** pmjireservify@gmail.com
- **Phone:** 0915 613 8722

By registering and/or using our photo booking services, you acknowledge that you have read, understood, and agree to be bound by these Terms & Conditions.